

22STCV00864 22STCV00864

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Case Number: 22STCV00864 Hearing Date: July 16, 2026 Dept: F46

Dept. F-46

Hearing Date: July 14, 2026

Case Number: 22STCV00864

DEFENDANT KATHRYN JOANN WRIGHT, M.D.'S MOTION TO CONTINUE TRIAL

Motion filed on June 23, 2026.

MOVING PARTY: Defendant Kathryn Joann Wright, M.D.

RESPONDING PARTY: None.

NOTICE: OK.

RELIEF REQUESTED: Continue the August 3, 2026 trial date and continue expert discovery deadlines, with fact discovery to remain closed.

RULING: Granted in part

BACKGROUND

Defendant Wright filed an ex parte application to continue trial and expert discovery deadlines on June 23, 2026, supported by the declarations of Robert J. Iacopino and Monica Salt.

On June 26, 2026, the Court declined to decide the request on an ex parte basis, deemed the ex parte application and supporting papers the moving papers, and specially set the motion for hearing on July 14, 2026.

On June 30, 2026, Defendant Wright filed Joint Additional Evidence in support of the motion, including declarations from Defendant Wright, Providence trial counsel Kelly L. Kiseskey, Plaintiff's counsel Nora Hovsepian, and Plaintiff's expert Howard C. Mandel, M.D. On July 1, 2026, Defendant Wright filed an addendum submitting her original signature page to her declaration.

No timely opposition was filed.

LEGAL STANDARD

"Continuances are granted only on an affirmative showing of good cause requiring a continuance." (In re Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 823.) A trial court has broad discretion in considering a request for a trial continuance. (Pham v. Nguyen (1997) 54 Cal.App.4th 11, 13-18.) Although trial continuances are disfavored, each request must be considered on its own merits, and the court may grant a continuance only upon an affirmative showing of good cause. (Cal. Rules of Court, rule 3.1332, subd. (c).)

Circumstances that may indicate good cause include (1) "[t]he unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances," (2) "[t]he unavailability of a party because of death, illness, or other excusable circumstances," (3) "[t]he unavailability of trial counsel because of death, illness, or other excusable circumstances," (4) "[t]he substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice," (5) "[t]he addition of a new party" where the new party or other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in light of the new party's involvement, (6) "[a] party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts," and (7) "[a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." (Cal. Rules of Court, rule 3.1332, subd. (c)(1)-(7).)

In ruling on a motion to continue trial, the court must

consider all relevant facts and circumstances. These may include (1) “[t]he proximity of the trial date,” (2) “[w]hether there was any previous continuance, extension of time, or delay of trial due to any party,” (3) “[t]he length of the continuance requested,” (4) “[t]he availability of alternative means to address the problem that gave rise to the motion or application for a continuance,” (5) “[t]he prejudice that parties or witnesses will suffer as a result of the continuance,” (6) “[i]f the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay,” (7) “[t]he court’s calendar and the impact of granting a continuance on other pending trials,” (8) “[w]hether trial counsel is engaged in another trial,” (9) “[w]hether all parties have stipulated to a continuance,” (10) “[w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance,” and (11) “[a]ny other fact or circumstance relevant to the fair determination of the motion or application.” (Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

DISCUSSION

Good Cause

The Court finds that multiple factors under Rule 3.1332 support a finding of good cause for continuance.

First, Defendant Wright recently substituted counsel.

Defendant Wright’s original counsel, John C. Kelly, retired at the end of December 2025, and the case was reassigned to another attorney within the same firm. Defendant Wright states that communication with the new attorney broke down, and she retained current counsel to secure counsel of choice and effective trial preparation. (Wright Decl., ¶¶3, 9; Iacopino Decl., ¶4.) The substitution was filed on June 12, 2026, and accepted on June 16, 2026. (Wright Decl., ¶9; Iacopino Decl., ¶4.) The current expert discovery cut-off is July 17, 2026, leaving new counsel limited time to become familiar with the case and prepare for expert depositions and trial. (Iacopino Decl., ¶5.) This supports good cause under Rule 3.1332, subdivision (c)(4).

Second, Defendant Wright is unavailable during the current trial date. In July 2024, Defendant Wright planned and paid for a family vacation to view a total solar eclipse in Iceland from August 11 through 19, 2026. She provided her availability and unavailability to prior counsel before

the September 2024 trial setting and reminded the new handling attorney after the August 3, 2026 trial date was set. (Wright Decl., ¶¶2, 6, 8.) Prior counsel did not raise the conflict with the Court, which Defendant Wright attributes to communication deficiencies with prior counsel. (Wright Decl., ¶¶7-8.) Because the trip overlaps with the anticipated trial period and cannot be rescheduled around the eclipse, proceeding on August 3, 2026 would impair Defendant Wright's ability to be present and participate in her defense. (Wright Decl., ¶¶8, 10.) This supports good cause under Rule 3.1332, subdivision (c)(2).

Third, co-defendant Providence's trial counsel is unavailable due to a conflicting preferential trial. Kelly L. Kiseskey represents the County of Los Angeles in Tyler Amezquita Aispuro, et al. v. County of Los Angeles, Los Angeles Superior Court Case No. 25CMCV00879, a birth injury matter granted trial preference under Code of Civil Procedure section 36(b). (Kiseskey Decl., ¶¶2-3.) That trial was originally set for June 22, 2026. On June 15, 2026, counsel first learned that the Aispuro court could not proceed on that date, and on June 16, 2026, the trial was continued to August 3, 2026. (Kiseskey Decl., ¶¶5, 8 & Ex. A.) Kiseskey informed the parties in this action on June 19, 2026, and Defendant Wright filed the ex parte application on June 23, 2026. (Kiseskey Decl., ¶¶6-7.) Counsel declares the conflict was not reasonably foreseeable and nor reasonably avoidable because Aispuro is preferentially set. (Kiseskey Decl., ¶¶8-10.) This supports good cause under Rule 3.1332, subdivision (c)(3).

Fourth, Plaintiff's essential expert witness, Howard C. Mandel, M.D., is unavailable for trial. Dr. Mandel is Plaintiff's main liability expert and is expected to testify regarding standard of care, causation, and damages as to all three defendants. (Hovsepian Decl., ¶7(d); Mandel Decl., ¶1.) On January 8, 2026, the same day Plaintiff's counsel notified Dr. Mandel's office of the August 3, 2026 trial date, Dr. Mandel's office informed counsel that he had a planned trip to Europe for a family wedding. Plaintiff's counsel promptly informed all counsel and began meeting and conferring to secure a mutually agreeable continuance date. (Hovsepian Decl., ¶7(f) & Ex. A.) Dr. Mandel's confirmed travel dates are July 31 through August 19, 2026. (Mandel Decl., ¶5.) Because Dr. Mandel is Plaintiff's main liability expert and will be unavailable during the trial period, proceeding on August 3, 2026 would impair Plaintiff's ability to present expert testimony on standard of care, causation, and damages. This supports good cause under Rule 3.1332, subdivision (c)(1).

Additional Factors

The subdivision (d) factors are mixed, but they favor a continuance. Trial is less than one month away, and the trial date has been reset multiple times. Trial was originally set for July 10, 2023, continued by stipulation to January 23, 2024, continued by stipulation to September 30, 2024, vacated after reassignment, later set for February 2, 2026, and then continued to the current August 3, 2026 trial date. (Hovsepian Decl., ¶6; Iacopino Decl., ¶14.) These factors weigh against further delay. (Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(2).)

The countervailing factors outweigh those concerns. The requested continuance is approximately 90 days to November 2, 2026, which is the earliest date to which all parties could agree and remains within the five-year deadline under Code of Civil Procedure section 583.310. (Iacopino Decl., ¶¶11, 13; Hovsepian Decl., ¶5.) This weighs in favor of a limited continuance. (Cal. Rules of Court, rule 3.1332, subd. (d)(3), (7), (11).)

There are no reasonable alternatives that would address the combined conflicts. Defendant Wright cannot reschedule the eclipse trip, Providence trial counsel cannot avoid the conflicting preferential trial, and Plaintiff cannot proceed without her main liability expert. (Wright Decl., ¶10; Kiseskey Decl., ¶¶8-10; Hovsepian Decl., ¶7(d); Mandel Decl., ¶5.) This weighs in favor of continuance. (Cal. Rules of Court, rule 3.1332, subd. (d)(4), (8).)

Denying the continuance would prejudice Defendant Wright's ability to participate in her defense, Co-Defendant Providence's ability to proceed with trial counsel, and Plaintiff's ability to present her essential expert witness. (Wright Decl., ¶¶8, 10; Kiseskey Decl., ¶10; Hovsepian Decl., ¶7(d); Mandel Decl., ¶5.) Plaintiff supports the continuance, the remaining defendants have expressed no opposition, and counsel represent that all parties agree to an early November 2026 trial date. (Hovsepian Decl., ¶¶3, 5, 9; Iacopino Decl., ¶13.) This weighs in favor of continuance. (Cal. Rules of Court, rule 3.1332, subd. (d)(5), (9)-(10).)

Weighing all relevant factors, the Court finds that good cause exists for a continuance of the trial date.

Although good cause exists to continue the trial, the circumstances giving rise to the continuance demonstrate that the action is

presently not in an objectively trial-ready posture. The substitution of counsel, completion of expert discovery, witness availability, and the other circumstances identified above must first be resolved before the Court assigns a new firm trial date. Accordingly, rather than immediately resetting trial, the Court will return this matter to active trial management to ensure that the impediments to trial have been resolved before the case is restored to the trial calendar.

Trial Setting Conference

The previously scheduled Final Status Conference shall be VACATED.

A Trial Setting Conference ("TSC") is set for August 3, 2026, at 8:30 a.m. in Department F46.

No later than five (5) court days before the Trial Setting Conference, lead trial counsel for all parties shall jointly file and serve a Joint Trial Status Report, not to exceed five (5) pages absent prior leave of Court, containing the following:

A
concise description of each circumstance that prevented the parties from proceeding to trial on August 3, 2026;

Whether
each previously identified circumstance has been resolved;

Identification
of any remaining issue that prevents the case from proceeding immediately to trial;

A
description of the specific efforts undertaken since the continuance to resolve each remaining issue;

The
earliest date on which all parties represent they will be fully prepared to commence trial;

Confirmation

whether the following trial documents have been completed and exchanged,
as applicable:

witness

lists;

exhibit

lists;

exhibit

binders;

deposition

designations;

motions

in limine;

requested

jury instructions;

verdict

forms;

technology

requirements; and

A

brief summary of the parties' settlement efforts since entry of this
order.

At the Trial Setting Conference, the Court will determine
whether the circumstances necessitating the continuance have been resolved,
whether the action has been restored to objective trial readiness, and whether
a firm trial date and Final Status Conference should then be assigned.

Discovery Deadlines

Except as otherwise provided, a continuance of the trial

date does not reopen discovery. (Code Civ. Proc., § 2024.020, subd. (b).) On motion, the Court may grant leave to complete discovery or reopen discovery after a new trial date has been set. (Code Civ. Proc., § 2024.050, subd. (a).) In exercising its discretion, the Court considers the necessity for the discovery, the diligence of the party seeking it, the likelihood the requested relief will interfere with the trial calendar or prejudice another party, and the time elapsed between prior and current trial settings. (Id., subd. (b)(1)-(4).)

Here, Defendant Wright requests that expert discovery deadlines be continued consistent with the new trial date, while fact discovery remains closed. The current expert discovery cut-off is July 17, 2026, shortly after the substitution of counsel was accepted. (Iacopino Decl., ¶5.) That timing leaves new counsel limited time to prepare for expert depositions in this medical malpractice action. Because expert discovery is necessary for trial preparation, no party opposes the request, and fact discovery will remain closed, expert discovery deadlines shall be continued consistent with the new trial date. Fact discovery shall remain closed.

CONCLUSION

The Final Status Conference scheduled for July 24, 2026, is VACATED.

The trial date of August 3, 2026, is VACATED.

A Trial Setting Conference is set for August 3, 2026, at 8:30 a.m. in Department F46.

The parties shall comply with the Trial Setting Conference requirements set forth above.

Fact discovery shall remain closed. Expert discovery deadlines shall be continued consistent with the applicable statutory deadlines following assignment of a new trial date, as discussed above.

Clerk is directed to give notice.